

26STCV00488 26STCV00488

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV00488 Hearing Date: June 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

30, 2026 TRIAL

DATE: Not set

CASE: USAmplitude v. Tiprah Commerce LLC, et al.

CASE NO.: 26STCV00488

DEFENDANT

CALIFORNIA NUTRITIONAL PRODUCTS, INC.'S MOTION FOR

JUDGMENT

ON THE PLEADINGS

MOVING

PARTY: Defendant California Nutritional
Products, Inc.

RESPONDING

PARTY: No opposition

Plaintiff

USAmplitude ("Plaintiff") operates as a licensed motor carrier. Defendant Tiprah Commerce LLC ("Tiprah"), and others, including but not limited to defendant California Nutritional Products,

Inc. ("CNP"), solicited Plaintiff to provide shipment services. Tiprah executed and delivered a "Rate and Load Confirmation" ("Rate Confirmations") to Plaintiff which, according to Plaintiff, constitute contracts for carriage. Plaintiff provided the shipment services to Tiprah. However, Tiprah defaulted under the Rate Confirmations and failed to make payment. This action followed.

I. BACKGROUND

On January 7, 2026, Plaintiff commenced this action against Tiprah, CNP, and other defendants, alleging causes of action for (1) breach of written contract, (2) goods and services rendered, (3) reasonable value, (4) account stated, (5) open book account, and (6) unjust enrichment.

On February 17, 2026, CNP filed an Answer to the Complaint.

On May 27, 2026, CNP filed this motion for judgment on the pleadings.

The motion is unopposed.

II. LEGAL STANDARD

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.¿ [Citations.]"¿ (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057 1064.)¿ The court must assume the truth of all properly pleaded material facts and allegations, but not contentions or conclusions of fact or law.¿ (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738.)¿ "A judgment on the pleadings in favor of the defendant is appropriate when the complaint fails to allege facts sufficient to state a cause of action.¿ (Code Civ. Proc., § 438(c)(3)(B)(ii).)"¿ (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.)¿ "Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.¿[Citation.]"¿ (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)¿ "The common law ground for a motion for judgment on the pleadings is identical to the statutory ground[.]" (Korchemny v.

Piterman (2021) 68 Cal.App.5th 1032, 1055.) Allegations are to be liberally construed. (Code Civ. Proc., § 452.)

If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (Code Civ. Proc., § 438(h)(1).) “Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

III. DISCUSSION

CNP argues Plaintiff’s claims against CNP are uncertain. The court agrees. Plaintiff asserts six causes of action against CNP. Yet, the Complaint’s only allegations specific to CNP are pleaded in the alternative and on information and belief. Specifically, the Complaint alleges:

“Plaintiff is informed and believes and thereon alleges that Defendant CALIFORNIA NUTRITIONAL PRODUCTS INC, a California Corporation, conducted business in Los Angeles County, California and at all relevant times acted as the shipper and/or receiver of goods for which Plaintiff provided transportation services.”

(Complaint, ¶ 7; see also Complaint, ¶ 14 [conceding “[a]ll allegations in the complaint are based on information belief and/or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. Whenever allegations in this complaint are contrary or inconsistent, such allegations shall be deemed alternative.”].)

These allegations are insufficient to apprise CNP of the nature of the allegations it is called to answer. There are no allegations or exhibits attached to the Complaint establishing that CNP entered into a contractual relationship with Plaintiff. Likewise, there are no facts alleged to establish Plaintiff rendered any services to CNP. The Complaint is uncertain.

IV. CONCLUSION

The motion for judgment on the pleadings is GRANTED. Leave to amend is GRANTED.

Plaintiff

is ordered to serve and file the First Amended Complaint within 15 days of this order.

Moving party to give notice, unless waived.

Dated: June 30, 2026

Brock T. Hammond

Judge of the Superior Court